

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**-----X **SUMMONS**

JOSE SANTIAGO,

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

- against -

THE CITY OF NEW YORK, POLICE OFFICER JULIO
RAMOS, POLICE OFFICER JOSEPH ADROLINO,
POLICE OFFICER JOSEPH SCAGLIONE,

Defendants.

The basis of venue is:
The county in which the action
arose per CPLR 504(3)The cause of action arose in
Kings County and is against
the City of New York

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner.

IN CASE OF YOUR FAILURE TO APPEAR OR ANSWER, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
July 22, 2019**DEFENDANTS' ADDRESS:**THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street, New York, NY 10007POLICE OFFICER JULIO RAMOS
79th PRECINCT
263 Tompkins Ave, Brooklyn, NY 11216POLICE OFFICER JOSEPH ARDOLINO
79th PRECINCT
263 Tompkins Ave, Brooklyn, NY 11216POLICE OFFICE JOSEPH SCAGLIONE
79th PRECINCT
263 Tompkins Ave, Nrooklyn NY 11216**PLAINTIFF'S ATTORNEY:**Masai I. Lord, Esq.
Attorney for Plaintiff
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New York, NY 10279
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**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
JOSE SANTIAGO,

Plaintiff,

INDEX NO:

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER JULIO
RAMOS, POLICE OFFICER JOSEPH ADROLINO,
POLICE OFFICER JOSEPH SCAGLIONE
Defendants.

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Plaintiff, JOSE SANTIAGO, by his attorneys. LORD & SCHEWEL PLLC, alleges upon knowledge as to himself and his own actions, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages and punitive damages pursuant to the common law of the State of New York, for violations of his rights under the New York Constitution, and pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his rights under the Constitution of the United States of America.

JURISDICTION AND VENUE

2. Jurisdiction lies in the Supreme Court of New York, County of Kings, as all Defendants resided in the State of New York, and the amount in controversy exceeds the jurisdictional amounts of all lower courts.

3. Plaintiff complied with the requirements of New York General Municipal Law Section 50-H by serving a notice of claim on the City of New York dated August 31, 2018.

4. Jose Santiago ("Santiago") was deposed by the City of New York pursuant to 50-H on November 12, 2018.

5. The City of New York has not settled or adjusted this claim.

6. That all conditions and requirements precedent to the commencement of this action have been complied with.

7. Venue is proper under CPLR § 504 in the County of Kings as it is the county where this cause of action arose.

JURY DEMAND

8. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PRELIMINARY STATEMENT

9. Plaintiff is a resident of the of the State of New York.

10. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. It operates the New York City Police Department (“NYPD”), a department or agency of defendant City of New York responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein.

11. All Individual Defendant NYPD Officers, listed below, are entitled to indemnification by the City of New York under New York law for any liability arising from conduct described herein.

12. All Individual Defendant NYPD Officers, listed below, are entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

13. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective

of the provisions of CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.

14. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.

15. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants are vicariously liable for the negligent acts and omissions of others who caused or contributed to the plaintiff's damages.

16. Defendant Officer Julio Ramos ("Ramos") was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

17. Defendant Officer Joseph Scaglione ("Scaglione") was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

18. Defendant Officer Joseph Ardolino ("Ardolino") was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting

under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

19. Plaintiff was incarcerated for approximately 24 hours before being arraigned and was released on his own recognizance.

20. On July 9, 2019, Mr. Santiago received an Adjournment in Contemplation of Dismissal. His case is due to be dismissed on or about January 9, 2020.

STATEMENT OF FACTS COMMON TO ALL CLAIMS

Jose Santiago is Driving on Flushing Avenue with His Father and Friends

21. On April 27, 2018, at approximately 2:00 a.m. Santiago was driving on Flushing Avenue with a group of friends, including Ricardo Mendoza and Mendoza's father.

22. Mendoza's father was in the vehicle with Mr. Santiago.

23. Mr. Santiago stops at red light behind Ricardo Mendoza's car. At no point is Mr. Santiago speeding nor racing nor at any point did he endanger any pedestrians.

Officer Ramos Pulls up Behind the Vehicles and Points his Firearm at Mendoza

24. Officer Ramos, along with Scaglione and Ardolino, pulled up behind Mendoza's vehicle in an unmarked police car.

25. Officer Ramos, while in his vehicle, states "we're jumping out fucking everybody right now."

26. Ramos then states, "everybody go to one fucking car, **guns out fuck this.**"

27. Ramos exits his vehicle with his service weapon out.

28. Ramos drags the firearm along the rear and side of Mendoza's vehicle as he approaches.

29. Ramos points his gun at Mendoza when he reaches the front of his car.

30. Mendoza's window is already lowered, as are the windows of his friends in the rear seats.

31. One of the female friends says "why does he have his gun out."

32. During this exchange, Mr. Santiago is sitting inside his vehicle and is cooperating fully with Officer Scaglione who was asking for his license and registration at the window of the vehicle.

Mr. Santiago witnesses Ricardo Mendoza be Viciously Assaulted by Ramos and Other Officers and then Santiago is placed under arrest

33. Ramos orders Mendoza out of the vehicle.

34. Ramos drags Mendoza out of the vehicle.

35. Numerous other officers arrive on the scene.

36. Ramos then punches Mendoza in the face with his handcuffs.

37. Ramos then knees Mendoza.

38. Mr. Santiago exits the vehicle and proceeds to record what is taken place. He pleads with the officers, with Mendoza's father, to stop this brutal assault.

39. Scaglione, Ardolino, and numerous other officers present, fail to intervene in Ramos's assault on Mendoza.

40. Mendoza falls to the ground and is bleeding profusely from a large gash under his right eye.

41. Ramos proceeds to place Mendoza in handcuffs and places him in his squad car.

42. Officer Scaglione asks Officer Ramos what is supposed to do with Santiago.

43. Officer Ramos says that Santiago is "going under too." And Santiago is placed under arrest.

DAMAGES

44. This action seeks damages on behalf of Plaintiff for emotional pain and suffering, that Plaintiff was forced to endure as a consequence of Defendants' decidedly wrongful actions.

45. Plaintiff has suffered, and continues to suffer, severe and ongoing damages, specifically including, physical pain and injuries, serious psychological and emotional damage, loss of familial relationships, and loss of quality of life.

46. The acts and omissions of Defendants entitle Plaintiff to compensatory and punitive damages.

**FIRST CLAIM:
FALSE ARREST UNDER STATE AND FEDERAL LAW**

29. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

30. That on April 27, 2018, and at all times hereinafter mentioned and upon information and belief, DEFENDANTS, without justification and without probable cause, imprisoned the Plaintiff.

31. That the DEFENDANTS' acting under the color of the law, intentionally confined the Plaintiff against his will and said confinement was not privileged.

32. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

33. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**SECOND CLAIM:
ASSAULT AND BATTERY UNDER NEW YORK STATE LAW**

34. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

35. That, on April 27, 2018, Defendants Ramos, Scaglione and Ardolino were acting within the scope of their employment with the Defendant, the City of New York.

36. That, on April 27, 2018, Defendants Ramos, Scaglione and Ardolino committed an assault and battery knowingly, intentionally, and willfully against Mendoza.

37. That, on April 27, 2018, Defendants Ramos, Scaglione and Ardolino who committed the aforementioned assault and battery upon Plaintiff were acting within the scope of their employment with the City of New York.

38. That, on April 27, 2018, the assault and battery on Plaintiff was without probable cause and was not the result of an appropriate arrest.

39. By reason of the foregoing, Defendants Ramos, Scaglione and Ardolino are liable to Plaintiff for damages.

**THIRD CLAIM:
FAILURE TO INTERVENE UNDER 42 U.S.C. 1983**

40. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

41. Defendants Scaglione, Ardolino, and Ramos other officers, had an opportunity prevent the false arrest of Mr. Santiago, had a duty to intervene and prevent such conduct and failed to intervene.

42. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages previously alleged.

**FOURTH CLAIM:
VIOLATIONS OF DUE PROCESS OF LAW AND FABRICATION OF
EVIDENCE UNDER 42 U.S.C 1983**

43. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

44. That Defendants Ramos, Scaglione and Ardolino falsely informed the Kings County District Attorney's Office ("KCDA") that they, *inter alia*, saw Plaintiff drive 90 MPH while racing other vehicles, go through a steady red light, almost hit multiple pedestrians, and that Plaintiff possessed Marihuana

45. That Defendants Ramos, Scaglione and Ardolino falsely stated this information under penalty of perjury, and then forward this information to the KCDA.

46. This claim was to give the misleading and false impression that Defendants Ramos, Scaglione and Ardolino lawfully arrested Plaintiff.

47. That the aforementioned statements by Defendants Ramos, Scaglione and Ardolino, consisted of fabricated and falsified information was utilized and relied upon by the KCDA.

48. The Individual Defendants acting individually and in concert and conspiracy, deliberately, and recklessly.

49. At all times Defendants were acting within their scope of their employment with The City of New York, at the aforesaid location.

50. That this information caused Plaintiffs to be denied his liberty and right to a fair prosecution in violation of fourth, fifth, sixth, and fourteenth amendments of the United States Constitution.

**FIFTH CLAIM
NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

51. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

52. DEFENDANT New York City are liable to Plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, retain and discipline its agents and/or employees employed by the New York City Police Department with regard to the duties described above.

53. The misconduct by Defendants Ramos, Scaglione and Ardolino described above and below, in particular evidences the failure to adequately hire, train, supervise, retain and discipline the Department's officers.

54. Consequently, DEFENDANT City of New York are liable to Plaintiff for damages.

**SIXTH CLAIM
FIRST AMENDMENT RETALIATION UNDER 42 U.S.C. 1983**

55. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

56. When Ricardo Mendoza was being assaulted by defendants, Mr. Santiago exited the vehicle and attempted to videotape the assault.

57. It is well established that recording the Police is a protected activity under the First Amendment to the Constitution of the United States.

58. As a result of recording the Defendants and exercising his First Amendment rights, Defendants in retaliation placed Mr. Santiago under arrest.

59. This arrest has an adverse impact on speech, namely it would deter an ordinary person from the exercise of their First Amendment rights.

60. Consequently, Defendants are liable to Plaintiff for Damages.

**SEVENTH CLAIM
VIOLATION OF THE NEW YORK STATE CONSTITUTION**

61. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

62. By virtue of the aforementioned acts, the Individual Defendants are liable to Plaintiff for violating his right to due process under Article I § 6 of the New York State Constitution, and his right to be free of unreasonable and unlawful searches and seizures under Article I § 12 of the New York State Constitution.

63. Defendant City of New York is liable for these violations of the New York State Constitution under the principle of *respondeat superior*.

64. Consequently, the Individual Detectives and the City of New York are liable to Plaintiff for compensatory and punitive damages.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: July 22, 2019
 New York, New York

Yours, etc.

Lord & Schewel PLLC



Masai I. Lord
Attorneys for Plaintiff
JOSE SANTIAGO
233 Broadway, Suite 2220
New York, NY 10279
718-701-1002

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD & SCHEWEL PLLC, attorneys of record for plaintiff JOSE SANTIAGO I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
July 22, 2019



Masai I. Lord
Counsel for Plaintiff